PROTOCOL

At the time of signing the Agreement between the Government of the Kingdom of Thailand and the Government of the Republic of India for the Avoidance of Double Taxation and the Prevention of Fiscal Evasion with respect to Taxes on Income, the undersigned have agreed upon the following provisions which shall form an integral part of the Agreement.

1. It is understood that if Thailand introduces a provision in its domestic law regarding Assistance in Collection of Taxes or agrees to enter into such assistance with any other treaty partner, then the competent authorities of the two Contracting States shall open the negotiations to amend the Agreement for extending assistance in the collection of tax to each other.

2. Nothing in this Agreement shall be construed as preventing a Contracting State from imposing tax on the disposal of profits out of a Contracting State in accordance with the provisions of its domestic law.

3. With reference to paragraph 4 of Article 7 (Business Profits), it is understood that if the information available to the taxation authority of a Contracting State is inadequate to determine the profits to be attributed to the permanent establishment of an enterprise, nothing in that Article shall affect the application of any law of that State relating to the determination of the tax liability of such permanent establishment provided that law shall be applied so far as the information available to the taxation authority permits consistently with the principles of that Article.

4. With reference to Article 26 (Exchange of Information), it is understood that information includes documents or certified copies of the documents.

IN WITNESS WHEREOF the undersigned, being duly authorized thereto, have signed this Protocol.

Done in duplicate at Bangkok on this 29th day of June, two thousand and fifteen Year of the Christian Era, in English, Thai and Hindi languages, all texts being equally authentic. In case of divergence of interpretation, the English text shall prevail.

FOR THE GOVERNMENT OF THE KINGDOM OF THAILAND	FOR THE GOVERNMENT OF THE REPUBLIC OF INDIA
General T. Patimapragorn	Sushma Swaraj
(Tanasak Patimapragorn) Deputy Prime Minister and Minister of Foreign Affairs	(Sushma Swaraj) Minister of External Affairs